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 Mb.No.98482 74789

13th October 2020

LEGAL OPINION

Name of the Owner/s : Mrs. Bandari Manasa & 15 others

Constitution of the Developer : M/s. Gamut Infra

PARTICULARS OF THE DOCUMENTS SCRUTINISED:

Sl. No.	Date of Document	Name of the Document	Original/ Xerox
01	16-09-1931 ✓	Regd. Sale deed No.658/1931 executed by Nawab Fakhr-ul-Moolk Bahadur for sale of the Bungalow No.12, situated at Chilkaigudam, Secunderabad infavour of Sri.Faridoon Sohrabji Chenoy.	Xerox
02	08 Farwardi 1946 (fasli 1356) ✓	Regd. Sale deed No.866/1355 executed by Sri.Faridoon Sohrabji Chenoy for sale of the Bungalow No.12, situated at Chilkaigudam, Secunderabad., infavour of Raja Ramlinga Reddy.	Xerox in Urdu with English translation
03	29-03-1975	Memorandum of partition executed by and between Sri.Sreeram Bhoopal S/o. Raja Ramlinga Reddy and Sri.C.Raghuram Bhoopal S/o. Raja Ramlinga Reddy for partition of the property bearing No.12, Padmarao Nagar.	Xerox
04	22-03-2006 ✓	Regd. Partition Deed No.705/2006 executed by and between Smt.Vijitha Bhoopal W/o. late. C.Raghuram Bhoopal and her children Sri.C. Bharat Bhoopal, Sri.C.Gautam Bhoopal and Sri.C.Madhav Bhoopal in respect of property bearing No.6-1-280/B, 6-1-280/C (old No. bungalow No.12 admeasuring 4972.40 Sq.Yds, situated at Walker Town, Padmarao Nagar, Secunderabad.	Xerox
05	28-08-2008 ✓	Regd. Gift settlement deed No.1549/2008 executed by Sri.C.Gautam Bhoopal and Sri. C.Madhav Bhoopal had settled the property ground and first floor admeasuring 9572 Sq.Yds on property bearing No.6-1-280, 6-1-280/B,C,D,E and F (old No.12) out of total extent 4972.4 Sq.Yds, situated at Walker Town, Padmarao Nagar, Secunderabad., infavour of their mother Smt.Vijitha Bhoopal.	Xerox
06	08-10-2008 ✓	Regd. Rectification deed No.708/2008 executed by Sri.C.Gautam Bhoopal, Sri.C. Madhav Bhoopal infavour of Smt. Vijitha Bhoopal for rectifying the Principal deed No.1549/2008 dated 06-09-2008 for the schedule B property admeasuring wrongly mentioned as 1103	Xerox



		Sq.Yds instead of 1187 Sq.Yds	
07	20-11-2008	DAGPA deed (un-registered) executed by Sri.C. Gautam Bhoopal and Mr.C.Madhav Bhoopal have jointly entered into a an agreement with M/s. Gharonda Builders & Developers for development of the premises No.6-1-280 and 280/E & Part D, Padmarao Nagar, Secunderabad.	Xerox
08	24-01-2011 <i>2015 Sachdev</i>	Sanctioned building permission issued by the GHMC vide Permit No.744/HO/NZ/Cir-18/2010 in File No.224/CSC/TP-18/NZ/2010 infavour of Sri.C. Gautam Bhoopal and others for construction of residential building complex i.e., Cellar, Stilt for parking +5 upper floors on premises No.6-1-280 and 280/E & Part D, Padmarao Nagar, Secunderabad.	Xerox
09	08-12-2014	Regd. Sale deed No.1891/2014 executed by Sri.C.Gautam Bhoopal, Sri.C. Keshav Bhoopal, Smt.Aditi Bhoopal, Sri.C.Madhav Bhoopal and Kumari Keerthana Bhoopal and M/s. Gharonda Builders & Developers rep by its Partner Sri.Sunil J.Sachdevhave (consenting party) have jointly sold the property admeasuring 1916.17 Sq.Yds (remaining after surrender of 199.83 Sq.Yds out of 2116 Sq.Yds of land along with building permission vide file No.224/CSE/TP-18/NZ/2010) and 8656 Sq.Ft. of constructed area of old building bearing Municipal Nos.6-1-280, 6-1-280/D and 6-1-280/E, situated at Padmarao Nagar, infavour of Mr.Aditya Chandra Jha.	Xerox
10	08-12-2014	Regd. GPA deed No. 118/IV/2014 executed by Sri.Aditya Chandra Jha appointing Sri.Sunil J.Sachdev for the property bearing No.6-1-280, 6-1-280/D and 6-1-280/E, total admeasuring 1916.17 Sq.Yds, situated at Padmarao Nagar, Secunderabad.	Xerox
11	13-07-2018	Revocation of GPA deed No.73/IV/2018 executed by and between Sri.Aditya Chandra Jha for revocation of GPA deed No.118/IV/2014 dated 08-12-2014 for the property bearing No.6-1-280, 6-1-280/D and 6-1-280/E, total admeasuring 1916.17 Sq.Yds, situated at Padmarao Nagar, Secunderabad.	Xerox
12	03-04-2019	Regd. Sale deed No.1091/2019 executed by Mr.Aditya Chandra Jha for sale of the vacant land admeasuring 1916.17 Sq.Yds (remaining after surrender of 199.83 Sq.Yds out of 2116 Sq.Yds of land along with building permission vide file No.224/CSE/TP-18/NZ/2010) bearing Municipal Nos.6-1-280, 6-1-280/D and 6-1-280/E, situated at Padmarao Nagar, infavour of Mrs. Bandari Manasa, Mr.Tanikella Venkateshwara Rao, Mrs. Swapna Rani Pallemmoni, Mr.Venugopal Pallemmoni, Mr. Ajay Babu Narayanam, Mr.M.V.D.S.Murty, Ms.M.Padma, Mr.Udumula Venkata Raghava Reddy, Mrs. Udumula Mythily, Mrs. J.Sridevi, mr.Billapati Srinivasa Satya Gandhi, Mrs. M.N.S.N.R.Padmavathi, Dr.Vadlapudi	Xerox



And as per the said Memorandum of Partition indicates that there was an oral partition among the legal heir of Late Raja Rama Linga Reddy and the same was reduced into writing on 21-03-1975. As per the said Memorandum of Partition the Bungalow No.12, admeasuring 4972.4 Sq.Yds fall to the share of Sri. C. Raghuram Bhoopal. (In 1975 Memorandum of oral Partition reduced into writing does not require registration)

4. Through Regd. Partition Deed No.705/2006 dated 22-03-2006 executed by and between the family members of late Raghuram Bhoopal, i.e., Smt.Vijitha Bhoopal, Sri.C. Bharat Bhoopal, Sri.C.Gautam Bhoopal and Sri.C.Madhav Bhoopal in respect of property bearing No.6-1-280/B, 6-1-280/C (old No. bungalow No.12) admeasuring 4972.4 Sq.Yds, situated at Walker Town, Padmarao Nagar, Secunderabad. The family members of late C. Raghuram Bhoopal have partitioned the above said bungalow No.12, among themselves.

The recitals of the regd. partition deed indicates that Sri.C.Raghuram Bhoopal S/o. late. Raja Ramlinga Reddy died on 04-07-1978 leaving behind is wife Smt.Vijitha Bhoopal and three sons namely Sri.C.Bharat Bhoopal, Sri.C.Gautam Bhoopal and Sri.C.Madhav Bhoopal as his only legal heirs and that they have partitioned the above said bungalow among themselves after selling a portion of the property to the Missionary Sisters of Immaculate, Guntur through regd. Sale deed No.3268/1978 dated 30-12-1978. As per the said partition deed the schedule property fall to the share of Sri..C. Gautam Bhoopal.

5. Through Regd. Gift settlement deed No.1549/2008 dated 28-08-2008 executed by Sri.C.Gautam Bhoopal and Sri. C.Madhav Bhoopal has settled the property ground and first floor admeasuring 9572 S.Ft or 1103 Sq.Yds out of the total extent of 4972.40 Sq.Yds., on property bearing No.6-1-280, 6-1-280/B,C,D,E and F (old No.12) out of total extent 4972.4 Sq.Yds, situated at Walker Town, Padmarao Nagar, Secunderabad., infavour of their Smt. Vijitha Bhoopal by conveying the title and possession of the same in her favour.
6. Through Regd. Rectification deed No.708/2008 dated 08-10-2008 executed by Sri.C.Gautam Bhoopal, Sri.C.Madhav Bhoopal infavour of Smt.Vijetha Bhoopal for rectifying the Principal deed No.1549/2008 dated 06-09-2008 for the schedule B property admeasuring wrongly mentioned as 1103 Sq.Yds instead of 1187 Sq.Yds.
7. Through unregistered DAGPA deed dated 20-11-2008 executed by Sri.C. Gautam Bhoopal and Mr.C. Madhav Bhoopal have jointly entered into a development agreement with M/s. Gharonda Builders & Developers for development of the premises No.6-1-280 and 280/E & Part D, admeasuring 2116 Sq.Yds situated at Padmarao Nagar, Secunderabad. That the same was not acted upon, hence cancelled by them by mutual consent.
8. The GHMC on the application made by Sri.C.Gautam Bhoopal and others had Sanctioned building permission vide Permit No.744/HO/NZ/Cir-18/2010 in File No.224/CSC/TP-18/NZ/2010 dated 24-01-2011 for construction of residential building complex i.e., Cellar, Stilt for parking + 5 upper floors on premises No.6-1-280 and 280/E & Part D, situated at Padmarao Nagar, Secunderabad.



		Srinivas, Srinidhi, Mrs. Mandavilli Valli Subhadra, Mr.Mandavilli Meher Mutyala Rao and Mr.Mandavilli Meher Das.	
13	01-12-2019	DAGPA deed executed by Mrs. Bandari Manasa and 15 others have jointly entered into an agreement for development of the property bearing No.6-1-280, 6-1-280/D and 6-1-280/E, total admeasuring 1916.17 Sq.Yds, situated at Padmarao Nagar, Secunderabad.	Xerox
14	18-11-2019	E.C.No.43644095 of 2020 for the period from 01-01-1990 to 17-11-2019.	Xerox

I. THE COMPLETE DESCRIPTION OF THE IMMOVABLE PROPERTY:-

SCHEDULE OF PROERPTY

All that the property bearing Municipal No.6-1-280, 6-1-280/D and 6-1-280/E, total admeasuring 1916.17 Sq.Yds, (Part of old bungalow No.12) situated at Padmarao Nagar, Secunderabad., and bounded by:

NORTH : H.No.6-1-280/B & 6-1-280/F
 SOUTH : Pavan Towers
 EAST : 60'- Wide Road
 WEST : Neighbours Smt. Anuradha Reddy's house.

FLOW OF TITLE FOR THE LAST 30 YEARS:-

1. Through Regd. Sale deed No.658/1931 dated 16-09-1931 executed by Nawab Fakhr-ul-Moolk Bahadur sold the Bungalow No.12, situated at Chilkaigudam, Secunderabad., infavour of Sri.Faridoon Sohrabji Chenoy by conveying the title and possession of the same in his favour.

The recital of the sale deed indicates that the said Nawab Fakhr-ul-Moolk Bahadur had purchased the said bungalow No.12, benami in the name of Zohra Khanum Saheba on 16-03-1918. And that he declared himself as the owner of the said bungalow subsequently and sold the same as above.

2. Through Regd. Sale deed No.866/1355 dated 08th Farwardi 1946 (fasli 1356) executed by Sri.Faridoon Sohrabji Chenoy sold the entire Bungalow No.12, situated at Chilkaigudam, Secunderabad., infavour of Raja Ramlinga Reddy by conveying the title and possession of the same in his favour. (the sale deed is in Urdu and with the English translation)

3. Through the Memorandum of partition dated 29-03-1975 executed by and between Sri. Sreeram Bhoopal S/o. late. Raja Ramlinga Reddy and Sri.C.Raghuram Bhoopal S/o. late. Raja Ramlinga Reddy for partition of the property bungalow No.12, bearing premises No.6-1-280, 6-1-280/B,C,D,E and F, totally admeasuring 4972.4 Sq.Yds, situated Walker Town, Padmarao Nagar, Secunderabad.



CONCLUSION:

As discussed above originally Zohra Khanum Saheba had acquired the Bungalow No.12 situated at Chilkagudam, Secunderabad in her name as a benami of his excellency Nawab Fakhr-ul-Moolk Bahadur through a sale deed dated 16-03-1918. And that the said Nawab Fakhr-ul-Moolk Bahadur in-turn sold the said bungalow No.12 infavour of Faridoon Sohrabji Chenoy through regd. Sale deed No.658/1931 dated 16-09-1931. And that the said Faridoon Sohrabji Chenoy had also sold the bungalow No.12, situated at Chilkalgudem, Secunderabad infavour of Sri. Raja Ramlinga Reddy through regd. Sale deed No.866/1355 dated 08th Farwardi 1946 (08th Farwardi 1356 Fasli). (the sale deed is in Urdu and with the English translation)

Whereas Sri.Raja Rama Linga Reddy had died intestate leaving behind his son namely Mr.C. Sreeram Bhoopal and Mr.C. Raghuram Bhoopal as his legal heirs who have succeeded the estate of the deceased including the above said property i.e., bungalow No.12, Walker Town, Padmarao Nagar, Secunderabad.

And that the legal heirs of late Raja Rama Linga Reddy, Mr.C. Sreeram Bhoopal and Mr.C. Raghuram Bhoopal have partitioned the above said bungalow No.12 equally through memorandum of partition reduced into writing on 29-03-1975.

As per the said Memorandum of Partition the property premises bearing Nos.6-1-280, 6-1-280/B, C,D,E and F, admeasuring 4972.40 fall to the share of Sri. Raghuram Bhoopal.

And that Mr.C. Raghuram Bhoopal had also died in the year 1978 leaving behind his wife Smt. Vijetha Bhoopal and three sons namely Mr. C. Bharath Bhoopal, Mr.C. Goutam Bhoopal and Mr.C.Madhav Bhoopal as his only legal heirs who have succeeded the estate of the deceased including the premises bearing Nos.6-1-280, 6-1-280/B,C,D,E and F situated at Walker Town, Padmarao Nagar, Secunderabad.

And that after the death of C. Raghuram Bhoopal, his legal heirs had sold the portion of property i.e., 2006 Sq.Mtrs along with constructed portion, infavour of the Missionary Sisters of Guntur through regd. sale deed No.3268/1978 dated 30-12-1978.

And that the legal heirs of late. C.Raghuram Bhoopal, i.e., Smt.Vijitha Bhoopal, Mr. C. Bharath Bhoopal, Mr. C.Goutam Bhoopal and Mr.C.Madhav Bhoopal have partitioned the remaining premises bearing Nos.6-1-280, 6-1-280/B,C,D,E and F, total admeasuring 4972.40 Sq.Yds, situated at Walker Town, Padmarao Nagar, among themselves through regd. Partition deed No.705/2006 dated 23-03-2006.

As per the said partition the premises bearing No.6-1-280/B and 6-1-280/C had allocated to the share of Mr. Bharath Bhoopal and the premises bearing No.6-1-280, 6-1-280/D, 6-1-280/E and 6-1-280/F had allocated to the share of Mr.Gautam Bhoopal and Mr.C.Madhav Bhoopal. And that Mr.Gautam Bhoopal and Mr.C.Madhav Bhoopal shall retain the 2199 Sq.Yds out of 3303 Sq.Yds along with go-down etc.,



9. Through Regd. Sale deed No.1891/2014 dated 08-12-2014 executed by Sri.C.Gautam Bhoopal, Sri.C. Keshav Bhoopal, Smt. Aditi Bhoopal, Sri.C.Madhav Bhoopal and Kumari Keerthana Bhoopal and M/s. Gharonda Builders & Developers rep by its Partner Sri.Sunil J.Sachdev have (consenting party) have jointly sold the property admeasuring 1916.17 Sq.Yds (remaining after surrender of 199.83 Sq.Yds out of 2116 Sq.Yds of land along with building permission vide file No.224/CSE/TP-18/NZ/2010) and 8656 Sq.Ft. of constructed area of old building bearing Municipal Nos.6-1-280, 6-1-280/D and 6-1-2820/E, situated at Padmarao Nagar, infavour of Sri.Aditya Chandra Jha by conveying the title and possession of the same in his favour.
10. Through regd. GPA deed No.118/IV/2014 dated 08-12-2014 executed by Sri.Aditya Chandra Jha had appointed Sri.Sunil J.Sachdev as his attorney for the property bearing No.6-1-280, 6-1-280/D and 6-1-280/E, total admeasuring 1916.17 Sq.Yds, situated at Padmarao Nagar, Secunderabad.
11. Through regd. Revocation of GPA deed No.73/IV/18 dated 13-07-2018 executed by and between Sri.Aditya Chandra Jha for revocation of GPA deed No.118/IV/2014 dated 08-12-2014 for the property bearing No.6-1-280, 6-1-280/D and 6-1-280/E, total admeasuring 1916.17 Sq.Yds, situated at Padmarao Nagar, Secunderabad, by mutual consent.
12. Through Regd. Sale deed No.1091/2019 dated 03-04-2019 executed by Mr.Aditya Chandra Jha sold the vacant land admeasuring 1916.17 Sq.Yds (remaining after surrender of 199.83 Sq.Yds out of 2116 Sq.Yds of land along with building permission vide file No.224/CSE/TP-18/NZ/2010) bearing Municipal Nos.6-1-280, 6-1-280/D and 6-1-2820/E, situated at Padmarao Nagar, infavour of Mrs. Bandari Manasa, Mr.Tanikella Venkateshwara Rao, Mrs. Swapna Rani Pallemmoni, Mr.Venugopal Pallemmoni, Mr. Ajay Babu Narayanam, Mr.M.V.D.S.Murthy, Ms.M.Padma, Mr.Udumula Venkata Raghava Reddy, Mrs. Udumula Mythily, Mrs. J.Sridevi, Mr.Billapati Srinivasa Satya Gandhi, Mrs. M.N.S.N.R.Padmavathi, Dr.Vadlapudi Srinivas, Srinidhi, Mrs. Mandavilli Valli Subhadra, Mr.Mandavilli Meher Mutyala Rao and Mr.Mandavilli Meher Das (the owners herein) by conveying the title and possession of the same in their favour.
13. Through DAGPA deed dated 01-12-2019 executed by Mrs. Bandari Manasa and 15 others have jointly entered into an agreement with M/s. Gamut Infra rep by its Managing partner Sri.K.Prem Chandra Reddy for development of the property bearing No.6-1-280, 6-1-280/D and 6-1-280/E, total admeasuring 1916.17 Sq.Yds, situated at Padmarao Nagar, Secunderabad into a residential building complex as per the above referred sanctioned building permission or by obtaining the fresh /revised sanctioned building permission from the GHMC.
14. The E.C No. 43644095 of 2020 for the period from 01-01-1990 to 17-11-2019 indicates Nil Encumbrances over the Schedule Property and it further discloses the sale transactions covered under Gift deed, Partition deed and Regd. Sale Deeds as discussed supra.



And that Mr.C.Goutam Bhoopal and Mr.C.Madhav Bhoopal had settled the premises bearing No.6-1-280/F, ground and first floor admeasuring 1 187 Sq.Yds (as per the Gift deed 1187 Sq.Yds wrongly mentioned as 1 103 Sq.Yds and that the same was rectified through regd. Rectification deed No.708/2008) infavour of their mother Smt. Vijitha Bhoopal through Regd. Gift Settlement deed No.1549/2008 dated 28-08-2008.

And that Sri.C. Gautam Bhoopal and Mr.C.Madhav Bhoopal have jointly entered into a development agreement with M/s. Gharonda Builders & Developers through DAGPA dated 20-11-2008 for development of the premises No.6-1-280 and 280/E & Part D, Padmarao Nagar, Secunderabad. But the same was not acted upon and the same was cancelled subsequently by mutual consent.

And that Sri.C. Gautam Bhoopal and Sri. C.Madhav Bhoopal have jointly applied and for obtained the sanctioned building permission trough their developer M/s. Gharonda Builders & Developers from GHMC vide Permit No.744/HO/NZ/Cir-80/2010 in file No. dated 08-04-2012 File No.224/CSC/TP-18/NZ/2010 for construction of residential building complex i.e., Cellar, Stilt for parking +5 upper floors on premises No.6-1-280 and 280/E & Part D, Padmarao Nagar, Secunderabad.

And that Mr.C. Goutam Bhoopal along with his son Mr. C.Keshav Bhoopal and his daughter Smt. Aditi Bhoopal and C. Madhav Bhoopal along with his daughter Kum. Keerthana Bhoopal along with their developer M/s. Gharonda Builders & Developers(as a consenting party) have jointly sold the property admeasuring 1916.17 Sy.Yds (remaining after surrender of 199.83 Sq.Yds out of 2116 Sq.Yds of land in accordance with sanction under GHMC file No.224/CSE/TP-18NZ/2010) and 8656 Sq.Ft of constructed area of old building bearing Nos.6-1-280, 6-1-280/D and 6-1-280/E, situated at Padmarao Nagar, Secunderabad infavour of Sri.Aditya Chandra Jha through regd. Sale deed No.1891/2014 dated 08-12-2014.

And that Sri. Aditya Chandra Jha had appointed Sri. Jayantilal L.Sachdev as his attorney through GPA deed No.118/IV/2014 dated 08-12-2014 and that said GPA was revoked by Sri.Aditya Jha through regd. Revocation of GPA deed dated 13-07-2018.

And that Sri. Aditya Chandra Jha had in-turn sold the above said property infavour of Mrs. Bandari Manasa and 15 others(the owners herein) through regd. Sale deed No.1091/2019 dated 30-04-2019.

And that Mrs. Bandari Manasa and 15 others have jointly entered into a development agreement with M/s. Gamut Infra rep by its Managing partner K. Prem Chandra Reddy for development of the property bearing Municipal Nos.6-1-280/D and 6-1-280/E, admeasuring 1916.17 Sq.Yds, situated at Padmarao Nagar, Secunderabad.



Thus, Mrs. Bandari Manasa and 15 others along with their developer M/s. Gamut Infra rep by its Managing partner Sri. K. Prem Chandra Reddy have got absolute title and possession over the Schedule Property and that they can jointly convey a valid and marketable title and possession infavour of prospective purchasers of the Flats.

Note: 1).to obtain E.C. from 01-01-1960 to up to date.
2).to verify all the originals before dealing with the property.
3).death certificates of Raja Rama Linga Reddy
and Raghuram Bhoopal

Place : Hyderabad
Date : 13-10-2020

K.KONDALA RAO
Advocate

